

Tentative Rulings
September 2, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

12. *Sethi v. Varguez Ruiz, et al*, Case No. CIVSB2414307
Defendant's Motion to Tax Costs
9/2/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT**, in part. Item 1 – Filing & Motion Fees shall be reduced to \$1,035. Item 5 – Service of Process shall be reduced to \$2,281. Item 13 – Models, Enlargements & Photocopies shall be reduced to \$43,471.88. Finally, Item 13 – Other shall be taxed in its entirety. In total, costs are reduced by \$52,722.82.

Case Summary

This personal injury case arises from an auto accident that occurred on March 1, 2024, on the I-10 eastbound freeway in the City of Ontario. Plaintiff was the backseat passenger in Defendant Varguez Ruiz's vehicle. Defendant, at the time, was driving on behalf of a rideshare service. The vehicle collided with the vehicle ahead of it. Plaintiff struck the interior of the vehicle and asserted significant injuries.

Relevant here, the jury returned a verdict in favor of Plaintiff and against Defendant Varguez Ruiz on May 21, 2026. On May 27, 2026, Plaintiff filed a memorandum of costs seeking costs in the amount of \$137,936.68. This motion followed.

Summary of the Law

Except as otherwise expressly provided by statute, a prevailing party can recover costs. (Code Civ. Proc., § 1032, subd. (b).) Costs statutes are to be strictly construed. (*Sequoia Vacuum Systems v. Stransky* (1964) 229 Cal.App.2d 281, 289.) Pursuant to section 1033.5(c), of the Code of Civil Procedure, an award of costs are allowable as long as they are: (1) incurred, whether or not paid; (2) reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation; and (3) reasonable in amount. Thus, even costs allowable as a matter of right may be disallowed if not reasonably necessary or may be reduced in amount to that which is reasonable. (*Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 245.)

Analysis

Importantly, no opposition is submitted to the motion. A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].)

The Court reviews the arguments as follows:

- (1) Item 1 – Filing & Motion Fees of \$3,854.95: Defendant admits that the minimal filing fees of \$1,035 were necessary and appropriate. However, it disputes the remainder. The Court would tax costs and allow \$1,035.
- (2) Item 4 – Deposition Costs of \$36, 277.43: Defendant asserts that at least a portion of the asserted depositions were not "necessary" and that no costs should be allotted for transcripts of court proceedings. The submitted Witness List indicates preparation for over forty potential witnesses. Thus, it appears that numerous depositions were necessary, and

the motion fails to indicate any overage with specificity. For that reason, the Court would not tax these costs.

- (3) Item 5 – Service of Process of \$4,562: Here, Defendant asserts correctly that no third-party witnesses were called, and Plaintiff has not substantiated any sums for service of process. However, Defendant admits that some service was necessary at the onset of the case. The Court would tax costs and allow half, or allow \$2,281.
- (4) Item 13 – Models, Enlargements & Photocopies of \$86,943.75: Defendant correctly indicates that a nearly six-figure cost for a 7-day trial is excessive. As Defendant asserts (without opposition), “Plaintiff did not use any models or enlargements at trial.” (Mtn., 8:20-21.) However, there was a trial technician, and there were various photographs and exhibits used throughout the trial. As there is no opposition to dispute this characterization, the Court would tax costs and allow half, or allow \$43,471.88.
- (5) Item 15 – Other at \$4,150. As Defendant asserts, “Plaintiff provides no information or substantiating documentation to determine what specific costs are being sought under this Item” (Mtn., 9:3-4.) Again, as no opposition is provided, the Court would strike this cost.

13. *Onemain Financial Group, LLC, v Gonzalez Castellanos*, Case No. CIVSB2419610
Plaintiff’s Motion for Judgment on the Pleadings
9/2/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

A party may bring a motion for judgment on the pleadings (JOP) after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.)

Here, Plaintiff submitted a declaration confirming satisfaction of the meet-and-confer requirement. (See Reese Decl., ¶¶9-11.) Thus, the Court reaches the merits of the motion:

The Court takes judicial notice of the Defendant’s Answer, filed on April 3, 2026, as well as the Court’s March 12, 2026, order deeming Plaintiff’s requests for admission as admitted. (See Order Granting Plaintiff’s Motion to Deem Request for Admissions Admitted, signed March 12, 2026.) Here, saliently, the admissions are in direct conflict with the answer’s general denial. More specifically, the admissions establish the cause of action. The JOP, therefore, appears appropriate.
